

ELIZABETH II



1984 CHAPTER viii

An Act to repeal The Metals Society Act 1973; and for
other purposes. [24th May 1984]

WHEREAS—

(1) The Metals Society was incorporated in 1974 under The Metals Society Act 1973 (hereinafter referred to as “the Act of 1973 c. x. 1973”), formed by the amalgamation of The Iron and Steel Institute and The Institute of Metals which two bodies were dissolved and ceased to exist as separate entities:

(2) The objects of The Metals Society as set out in the Act of 1973 are to promote all aspects of the science and technology of metals and alloys and allied materials:

(3) The Institution of Metallurgists was incorporated by Royal Charter as a body whose objects were to promote and develop the science and practice of metallurgy, to advance education therein and to co-ordinate and encourage the study of metallurgy and in 1983 the Royal Charter was amended to provide (inter alia) that the objects of the Institution of Metallurgists shall be to promote and develop all aspects of the science, technology and use of metals and the practice of metallurgy, to advance education therein, and to co-ordinate and encourage the study of metallurgy:

(4) It is proposed that the name of The Institution of Metallurgists shall be changed to "The Institute of Metals":

(5) The Metals Society and The Institution of Metallurgists are desirous of amalgamating:

(6) It is intended that upon such amalgamation all property, rights, privileges and liabilities of The Metals Society should be transferred to and vested in The Institute of Metals as provided by this Act and that the Act of 1973 should be repealed:

(7) It is expedient that the provisions of this Act should be enacted:

(8) The purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Short title.

1. This Act may be cited as The Metals Society Act 1984.

Interpretation.

2. In this Act unless the context otherwise requires—

1973 c.x.

"the Act of 1973" means The Metals Society Act 1973;

"the Institute" means The Institute of Metals;

"the Society" means The Metals Society incorporated by the Act of 1973;

"the appointed day" has the meaning given to it by section 3 (Appointed day) of this Act.

Appointed day.

3. If Her Majesty is pleased to approve amendments to the Royal Charter and Bye-laws of the Institution of Metallurgists to change the name of that body to "The Institute of Metals" and for other purposes connected with the amalgamation of the Society with the Institute the appointed day for the purposes of this Act shall be 1st January 1985 or the date of such approval, whichever is the later.

Dissolution of Society and transfer of property, etc.

4. On the appointed day the Society shall by virtue of this Act be dissolved and cease to exist and all property, real and personal, of every description, including things in action, and all rights and privileges of the Society which immediately before the appointed day belonged to or were vested in or exercisable by the Society shall be by virtue of this Act and without any conveyance, transfer or other instrument transferred to and vested in and exercisable by the Institute for all the estate and interest therein of the Society and shall be applied to the objects and purposes of the Institute.

5. On the appointed day all liabilities of the Society shall, by virtue of this Act, be transferred and attached to the Institute and shall be discharged and satisfied by the Institute. Transfer of liabilities.

6. All agreements, awards, contracts, deeds and other instruments which immediately before the appointed day were existing in favour of or against the Society shall continue and may be carried into effect and enforced by or in favour of or against the Institute to the same extent or in like manner as if the Institute instead of the Society had been party to or interested in the same respectively. Saving for agreements, deeds, etc.

7. On the appointed day any bequest, gift, trust or other benefit in favour of or connected with the Society shall be read and have effect as if the Institute had been named or referred to therein instead of the Society and in the case of the trusts constituted by the instruments referred to in Part I of the Schedule to this Act, subject to the variations set out in Part II of that Schedule whether such bequest, gift, trust or other benefit is made, regulated or constituted by any will, settlement, scheme, arrangement, order of the court or of the Charity Commissioners, Act of Parliament or in any other manner, and whether made or executed or taking effect before or after the appointed day. Construction of bequests, etc., in favour of Society.

8. All actions, proceedings and causes of action or proceedings which immediately before the appointed day were existing or pending in favour of or against the Society shall continue and may be prosecuted by or against the Institute to the same extent or in like manner as if the Institute instead of the Society had been a party to or concerned in the same respectively. Saving for actions, etc.

9. Within a period of 25 years after the passing of this Act, no person shall use the name "The Metals Society" without the consent of the Institute. Restriction on use of name of Society.

10. On the appointed day the Act of 1973 shall be repealed. Repeal.

Section 7.

SCHEDULE

TRUSTS

PART I

INSTRUMENTS

- (1) Declaration of trust of the Bessemer Medal Fund dated 1st May, 1874.
- (2) Trust deed of the Andrew Carnegie Research Fund dated 10th July, 1931.
- (3) Trust deed of the Williams Prize Fund dated 10th July, 1931.
- (4) The will of Dr. T. P. Colclough, C.B.E., deceased.

PART II

VARIATIONS TO INSTRUMENTS

- (1) In the instruments referred to in Part I of this Schedule—
References to The Iron and Steel Institute shall be read as references to the Institute.
References to the Council of The Iron and Steel Institute shall be read as references to the Council of the Institute.
References to the President of The Iron and Steel Institute shall be read as references to the President of the Institute.
References to the annual meeting and to annual meetings and references to the spring or autumn meeting of The Iron and Steel Institute shall be read as references to a general meeting or general meetings of the Institute.
- (2) In the declaration of trust of the Bessemer Medal Fund dated 1st May, 1874, the reference to a specific pair of dies shall be omitted.

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